

23TRCV01956 23TRCV01956

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-23

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Case Number: 23TRCV01956 Hearing Date: June 23, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

JUDITH

GRISELDA HERCULES,

Plaintiff,

Case No.:

23TRCV01956

vs.

[Tentative]

Granted

FOOD 4

LESS HOLDINGS, INC., a Delaware corporation; JOHN DOE, an individual; and

DOES 1 through 50, inclusive

Defendants.

Hearing

Date: June

23, 2026

Moving Parties: Plaintiff Judith Griselda Hercules

Responding Party: Defendant Ralphs Grocery dba Food 4 Less

HEARING: Motion to Compel Production of Documents requested at the deposition of

Defendant's PMK.

The Court considered the moving,

opposition, and reply papers.

RULING

The Court grants the Motion to Compel

Production of Documents requested at the deposition of Defendant's PMK.

BACKGROUND

On June

16, 2026, Plaintiff Judith Griselda Hercules filed the Complaint against

Defendant Food 4 Less Holdings Inc., alleging causes of action for negligence

and premises liability.

On March 2, 2026,

Plaintiff served its first amended notice of Deposition for Tashay Pugh in her individual capacity and in her capacity as Defendant's Person Most Knowledgeable.

On

October 24, 2025, Defendant emailed Plaintiff stating that it could not produce the requested document prior to the deposition.

On

December 2, 2025, Defendant produced a total of six (6) documents totaling eight (8) pages.

On March 23, 2026, Defendant produced an additional four documents.

On April 1, 2026, Plaintiff took

Ms. Pugh's deposition.

On May 27, 2026, Plaintiff filed

the Motion to Compel Production of Documents requested at the deposition of Defendant's PMK.

On June 9, 2026, Defendant filed

the Opposition.

On June 12, 2026, Plaintiff filed

the Reply.

LEGAL STANDARD

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc. § 2025.480 subd. (a).)

DISCUSSION

Meet

and Confer

"This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.480 subd. (b).)

Here, Plaintiff and Defendant have gone through multiple rounds of email communication and document production regarding the subject RFPs. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Plaintiff requests the Court compel Defendant to provide responses to RFPs 1-24.

Plaintiff argues that Defendant failed to object to the

instant discovery. Defendant argues that Defendant had objected to the same discovery requests 5 times prior to the serving of the amended notice. However, Defendant's opposition does not state that it objected to the RFPs in the instant Amended Notice of Deposition. Thus, Defendant had waived its objections. (Code Civ. Proc., § 2025.410.)

If Defendant truly does only have the documents it has already produced, it must affirm that a diligent search and a reasonable inquiry have been made in an effort to comply with the demand, specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party, and set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item. (Code Civ. Proc., § 2031.230.)

While not at issue in the instant motion, the Court has also reviewed the subject RFPs and finds them relevant and appropriate.

Therefore, the Court grants the Motion to Compel Production of Documents requested at the deposition of Defendant's PMK.

Sanctions

Failing

to respond to an authorized method of discovery is a sanctionable misuse of the discovery process. (Code Civ. Proc. § 2023.030 subd. (a), 2023.010 subd. (d).)

If a motion to compel a party to respond to interrogatories is successful, the court must impose a monetary sanction against that party unless the sanction would be unjust. (Code Civ. Proc § 2030.290 subd. (c), 2023.030 subd. (a), 2023.010 subd. (d); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.) The monetary sanction includes the moving party's reasonable expenses, such as attorney's fees and costs. (Code Civ. Proc § 2023.030 subd. (a).)

Plaintiff requests that the Court impose sanctions on Defendant in the amount of \$2,534.70. The Court finds that Plaintiff is not entitled to sanctions based on Defendant's misuse of the discovery process.